

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Yolexis Rodriguez	Team: Squad #11	CCRB Case #: 201901446	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/19/2019 7:15 AM	Location of Incident: Kings Highway and East 94th Street, Over the phone, 67th Precinct stationhouse	18 Mo. SOL 4/5/2021	Precinct: 67		
Date/Time CV Reported Tue, 02/19/2019 9:22 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/19/2019 9:22 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DTS Devin Baker	1595	952439	067 PCT
2. An officer			067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Devin Baker	Abuse: At Kings Highway and East 94th Street in Brooklyn, Detective Devin Baker seized § 87(2)(b) s property.	A . Exonerated
B . DTS Devin Baker	Abuse: Over the phone, Detective Devin Baker refused to provide his name to § 87(2)(b)	B . Unsubstantiated
C . An officer	Abuse: At the 67th Precinct stationhouse, an officer refused to provide his name to § 87(2)(b)	C . Officer(s) Unidentified

Case Summary

§ 87(2)(b) filed the following complaint with the CCRB via phone on February 19, 2019.

On February 19, 2019, at approximately 7:10a.m., § 87(2)(b) was arrested by Det. Devin Baker of the 67th Precinct, at Kings Highway and East 94th Street in Brooklyn, following a vehicle stop for a traffic violation. § 87(2)(b) was operating a vehicle that belonged to his mother, § 87(2)(b). The vehicle was seized and brought to the 67th Precinct stationhouse (**Allegation A – Abuse of Authority, Exonerated**).

At approximately 10:00a.m., Det. Baker called § 87(2)(b) using § 87(2)(b)'s phone. § 87(2)(b) asked Det. Baker for his name and he did not provide it. Det. Baker allegedly said, "You don't need to know that" (**Allegation B – Abuse of Authority, Unsubstantiated**). On the same day a short time later, § 87(2)(b) went to the 67th Precinct stationhouse, where she was approached by an unidentified male officer. § 87(2)(b) asked the officer for his name and he stated that he was a sergeant. The officer did not provide his name to § 87(2)(b) (**Allegation C – Abuse of Authority, Officer Unidentified**).

There is no video evidence of the incidents.

Findings and Recommendations

Allegation (A) Abuse of Authority: At Kings Highway and East 94th Street in Brooklyn, Detective Devin Baker seized § 87(2)(b)'s property.

Det. Baker testified that § 87(2)(b)'s vehicle was brought from Kings Highway and East 94th Street to the 67th Precinct stationhouse to be vouchered following § 87(2)(b)'s arrest. § 87(2)(b) subsequently retrieved the vehicle at the 67th Precinct stationhouse on February 19, 2019 [**Board Review 04**].

NYPD Patrol Guide Procedure 208-03 stipulates that a vehicle or other conveyance not required as evidence may be safeguarded if appropriate [**Board Review 12**].

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Exonerated**.

Allegation (B) Abuse of Authority: Over the phone, Detective Devin Baker refused to provide his name to § 87(2)(b)

§ 87(2)(b) testified that she received a call from her son's cell phone and the caller identified himself as a detective from the 67th Precinct. § 87(2)(b) asked the detective for his name and he said, "You don't need to know that." The detective did not provide his name to § 87(2)(b). § 87(2)(b) did not speak with § 87(2)(b) during the phone call [**Board Review 01**].

A verified statement could not be obtained from § 87(2)(b). On March 21, 2019, § 87(2)(b)'s criminal attorney, expressed that he did not consent to § 87(2)(b) providing a statement to the CCRB [**Board Review 03**].

Arrest report # § 87(2)(b) generated for § 87(2)(b) on February 19, 2019, indicated that Det. Devin Baker of the 67th Precinct was the arresting officer [**Board Review 11**]. According to Roll Call for Tour 2 provided by the 67th Precinct, Det. Baker was the only officer with the rank of detective working at the command at the time the phone call would have taken place [**Board Review 11**].

Det. Baker testified that he allowed § 87(2)(b) to call § 87(2)(b) though he did not recall the details of this conversation. Det. Baker did not recall if the phone call took place at the arrest location or at the stationhouse. Det. Baker did not recall speaking to § 87(2)(b) over the phone, though he may have introduced himself and said that § 87(2)(b) wanted to speak to her.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Unsubstantiated**.

Allegation (C) Abuse of Authority: At the 67th Precinct stationhouse, an officer refused to provide his name to § 87(2)(b)

§ 87(2)(b) testified that when she went to the 67th Precinct stationhouse shortly after 10:00a.m. on February 19, 2019, she was approached by an officer who she described as a white male, 6'4" tall, in his 40s, with blue eyes, wearing plainclothes and a shield [Board Review 01]. § 87(2)(b) was unable to describe the shield in detail. § 87(2)(b) asked the officer for his name and he said that he was a sergeant. The officer explained why § 87(2)(b) was arrested and told § 87(2)(b) that she would have to wait to have her vehicle returned to her.

Sgt. James Sinnott was interviewed at the CCRB on March 20, 2019 [Board Review 02]. Sgt. Sinnott was the desk sergeant during Tour 1 on February 19, 2019 and was wearing uniform; he had no knowledge of § 87(2)(b) going to the stationhouse to inquire about § 87(2)(b)'s arrest.

Sgt. Kevin Levenstein was interviewed at the CCRB on April 3, 2019 [Board Review 06]. Sgt. Levenstein was the desk sergeant during Tour 2 on February 19, 2019 and was wearing uniform. Sgt. Levenstein did not recall interacting with § 87(2)(b).

By cross referencing the NYPD MOS Photo Terminal database and Tour 2 Roll Call provided by the 67th Precinct, Sgt. Allen Kirmss was determined to be the only remaining sergeant on duty who was a white male with blue eyes [Board Review 05].

Sgt. Kirmss was interviewed at the CCRB on April 11, 2019 [Board Review 07]. Sgt. Kirmss was assigned as an Administrative Sergeant during Tour 2 and was wearing uniform. He did not recall interacting with § 87(2)(b). The Command Log for February 19, 2019, provided by the 67th Precinct, did not contain any entries documenting § 87(2)(b)'s visit to the stationhouse [Board Review 11].

§ 87(2)(g)

It is therefore recommended the **Allegation C** be closed as **Officer Unidentified**.

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) [Board Review 08].

- Detective Devin Baker has been a member of service for 6 years and has no substantiated allegations against him.

Mediation, Civil and Criminal Histories

- This complaint is not mediation eligible given that § 87(2)(b) was arrested on the date of the incident.
- On April 12, 2019, a Notice of Claim request was submitted to the Office of the New York City Comptroller and has been added to the case file.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____11_____

Investigator: _____

Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature _____ Print Title & Name _____ Date _____